

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Herring Industry Act, 1935	25 & 26 Geo. 5. c. 9.
Herring Industry Act, 1944	7 & 8 Geo. 6. c. 32.
White Fish and Herring Industries Act, 1948 ...	11 & 12 Geo. 6. c. 51.
Sea Fish Industry Act, 1951	14 & 15 Geo. 6. c. 30.

CHAPTER 18

Coastal Flooding (Emergency Provisions) Act, 1953

ARRANGEMENT OF SECTIONS

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WORKS FOR DEFENCE AGAINST SEA WATER

Provisions for enabling river boards to execute works and to have the use thereof

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An Act to make provision for work for defence against sea water in localities affected by the flood of January, 1953, to provide for the rehabilitation of agricultural land damaged by salt water, and for purposes connected with the matters aforesaid. [20th May 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same as follows:—

PART I

WORKS FOR DEFENCE AGAINST SEA WATER

*Provisions for enabling river boards to execute works
and to have the use thereof*

1.—(1) Subject to the provisions of this Act, the Minister Authorisations may, during the year nineteen hundred and fifty-three, authorise to do work on the river board for any of the areas specified in this subsection embankments, to do on any land, at any time during the period beginning etc., and with the passing of this Act and ending with the thirtieth day work. of June, nineteen hundred and fifty-four, work of any of the kinds specified in this subsection as to which the following condition appears to the Minister to be satisfied, that is to say, that the work is required for the defence against sea water of an area flooded or threatened with flooding in consequence of the damage to embankments and other drainage works sustained in coastal

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and estuary localities in the Kent, Essex, East Suffolk and Norfolk, Great Ouse, Lincolnshire, and Hull and East Yorkshire river board areas in the period beginning on the thirty-first day of January, nineteen hundred and fifty-three, or in consequence of the inadequacy of such works in those areas.

The said kinds of work are—

- (a) constructing, improving or repairing banks, walls, embankments, groynes, dykes, or other drainage works (in this Act referred to as “bank construction”);
- (b) working clay or other substances for obtaining materials for work of a kind mentioned in this subsection (in this Act referred to as “earth getting”);
- (c) constructing roads, or improving roads other than highways, for meeting transport requirements of doing work of a kind mentioned in this subsection or of maintaining things constructed, improved or repaired in the course of such work (in this Act referred to as “access road works”);
- (d) constructing temporary housing accommodation for persons engaged on work of a kind mentioned in this subsection or on maintaining things constructed, improved or repaired in the course of such work (in this Act referred to as “temporary housing works”).

(2) The period during which under the preceding subsection authorisations may be given, and the period therein specified for the doing of work pursuant to such authorisations, may each be extended so as to end not later than the thirty-first day of December, nineteen hundred and fifty-four, and the thirtieth day of June, nineteen hundred and fifty-five, respectively by an order or orders made by the Minister by statutory instrument laid before, and approved by a resolution of, each House of Parliament.

In this Act the expression “the works period” means the period specified in the preceding subsection for the doing of work, together with any extension thereof made under this subsection.

(3) An authorisation shall not be given under this section for work, other than bank construction or earth getting combined with bank construction or access road works so combined,—

- (a) on a building or the site or curtilage of a building; or
- (b) on land belonging to Her Majesty in right of the Crown or of the Duchy of Lancaster except with the consent of the person deemed for the purposes of the Land Drainage Act, 1930, to be the owner of the land, or on land belonging to a Government department except with the consent of the Minister of the Crown in charge of the department.

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(4) A river board seeking an authorisation under this Act for work of any of the kinds specified in subsection (1) of this section shall submit to the Minister proposals indicating the nature of the work, and the land on which it is proposed to do it, in such form and giving particulars as to such matters as the Minister may require.

(5) A river board seeking an authorisation under this Act for work which consists of or includes—

- (a) constructing a groyne, or moving beach materials or doing other work, on a site to the seaward side of a bank, wall or embankment, or
- (b) constructing, improving or repairing a bank, wall or embankment adjacent to a place where coast protection work has been or is being done by a coast protection authority,

shall give notice of the nature of the work for which they seek the authorisation, in so far as it falls within paragraph (a) of this subsection, to the coast protection authority in whose area the site is and to any coast protection authority whose area adjoins the area of that authority, and, in so far as it falls within paragraph (b) of this subsection, to the coast protection authority in whose area the place is.

In this subsection the expressions “coast protection work” and “coast protection authority” have the meanings assigned to them by the Coast Protection Act, 1949.

2.—(1) An authorisation under the preceding section shall not be construed as conferring power to do any work which involves interference with or alteration of a highway (that is to say, stopping up, diverting or obstructing it, or raising, lowering or otherwise altering it). Authorisations where highways are affected.

(2) Where it appears to the Minister, on the submission of proposals to him under subsection (4) of the preceding section, that in order to secure the purposes, or as a result, of work of bank construction required as mentioned in subsection (1) of the preceding section to be done on any land, or of earth getting or access road works to be combined with the bank construction, interference with or alteration of a highway will be needed, the Minister and the Minister of Transport jointly may, during the period during which authorisations under section one of this Act may be given, make an order authorising both the doing of that work on the land and the interference with or alteration of the highway, including, where diversion of the highway is authorised, the doing on any land of work needed for rendering the site to which it is to be diverted available for use as a highway.

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(3) The duration of an authorisation given under this section shall be limited to the works period or some period falling within that period, except that the stopping up or diversion of a highway may be authorised thereunder for a period ending not later than six months after the expiration of the works period.

(4) An order under this section—

- (a) may authorise either the river board on the one hand, or the highway authority (in the case of a highway maintainable by the inhabitants at large) or some other authority specified in the order (in the case of a highway not so maintainable) on the other hand, to do the whole of the work needed whether for the bank construction or any work to be combined therewith or in connection with the interference with or alteration of the highway, or may authorise the doing of that work partly by the river board and partly by that authority, and in the latter case shall specify or provide for determining the parts which they are respectively to do;
- (b) may impose either on the river board or on such an authority as aforesaid an obligation to maintain things constructed, improved or repaired in the course of the work;
- (c) may impose either on the river board or on such an authority as aforesaid an obligation to contribute to expense incurred by the other of them in doing any of the work, or in such maintenance, or on the river board an obligation to contribute to any increase in expense of maintaining the highway incurred by the body or person responsible therefor in consequence of the doing of any of the work.

(5) Notwithstanding anything in section twenty-one of the Public Utilities Street Works Act, 1950, the code in Part II of that Act shall not have effect in a case in which works executed for road purposes within the meaning of that Act are executed pursuant to an authorisation under this Act.

**Procedure as to
authorisations.**

3.—(1) Before an authorisation extending to any given land is given under this Act for earth getting or access road works, other than such getting or works combined with bank construction, or for temporary housing works, the river board must—

- (a) have published in one or more local newspapers circulating in the locality in which the land in question is situated a notice indicating the kind of work proposed and the land on which it is proposed to do it (the land so indicated being land consisting of or comprising the land in question), and stating that representations which any person desires to make must be made to the Minister in writing within fourteen days from the date of the publication of the notice; and

- (b) have served on every owner and occupier of any of the land in question a notice in writing indicating the like matters, and stating that representations which any person served desires to make must be made to the Minister in writing within fourteen days from the date of service of the notice on him;

and the Minister shall consider any representations duly made to him.

(2) Before an authorisation is given under this Act for work which is in the opinion of the Minister of Transport likely to involve—

- (a) prevention or obstruction of, or danger to, navigation in tidal waters, or
- (b) injurious affection of the works of, or any property which is vested in or is under the control of, the persons carrying on the undertaking of a navigation, harbour or conservancy authority, or injurious affection of the carrying on of such an undertaking,

the river board must have published in one or more local newspapers circulating in the localities adjacent to the waters in question, or in which the undertaking in question is carried on, as the case may be, such a notice as is mentioned in paragraph (a) of the preceding subsection, and the Minister and the Minister of Transport shall consider any representations duly made.

(3) Before an order is made under section two of this Act, the river board must—

- (a) have published in one or more local newspapers circulating in the locality in which the highway is situated a notice indicating that interference with it or alteration of it is proposed, and stating that representations which any person desires to make must be made to the Minister in writing within fourteen days from the date of the publication of the notice, and have caused a like notice to be displayed in a prominent position on the highway;
- (b) have served, in accordance with the requirements of subsections (3), (4) and (6) of section nineteen of the River Boards Act, 1948, on any body or person by whom the highway is maintainable (unless the board have been unable after reasonable inquiry to ascertain by whom, if anyone, it is maintainable), on any gas, electricity, water or hydraulic power undertakers having apparatus under, along or across the highway, and on the Postmaster-General, a notice in writing indicating the like matters, and stating that representations which any body or person served desires to make must be made to the Minister in writing within fourteen days from the date of service of the notice on them or him; and

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- (c) in the case of an order authorising diversion of the highway, have served on every owner and occupier of land over which the diversion is to run a notice in writing indicating the proposed diversion, and stating that representations which any person served desires to make must be made as last aforesaid;

and the Minister and the Minister of Transport shall consider any representations duly made.

(4) Notwithstanding that the requirements of paragraph (a) of subsection (1) or (3) of this section have not been complied with as to such newspaper publication as is therein mentioned, an authorisation may be given without such publication if the Minister is satisfied that it has not been reasonably practicable to obtain facilities for such publication in accordance with those requirements.

(5) Publication, service or display of a notice before the passing of this Act shall be effective for the purposes of compliance with requirements of the preceding subsections.

(6) As soon as is practicable after an authorisation has been given under this Act for the doing of any work of a kind specified in section one of this Act, or for the diversion of a highway to any land, the river board shall serve on every owner and occupier of any of the land to which the authorisation extends a notice stating that it has been given and indicating the kind of work thereby authorised.

(7) Requirements of this section for a river board to serve any such notice as is therein mentioned on every owner and occupier of any given land shall be deemed to have been satisfied—

- (a) where such a notice has been served on a person being such an owner or occupier in accordance with the requirements of subsections (3), (4) and (6) of section nineteen of the River Boards Act, 1948, as regards service on him;
- (b) if, in the case of any part of that land appearing to the board's representative at the time of his seeking to serve the notice to be occupied, such a notice, addressed to "the owner and the occupier" of that part of the land (describing it), was then delivered to some responsible person thereon, or, if there was then no such person thereon, was then affixed to some conspicuous object thereon, as regards service on every owner and occupier of that part of the land;
- (c) if, in the case of any part of that land appearing to the board's representative at the time of his seeking to serve the notice to be unoccupied, such a notice, addressed to "the owners and any occupiers" of that

part of the land (describing it), was then affixed to some conspicuous object thereon, as regards service on every owner and occupier (if any) of that part of the land.

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(8) Where for the purposes of this section a notice is served on an owner of land which is to the knowledge of the river board ecclesiastical property, a like notice shall be sent in a registered letter by post to the secretary of the Church Commissioners at their principal office.

4.—(1) An authorisation under the preceding provisions of this Act to do any work (hereinafter referred to as a “works authorisation”) may be given subject, or after being given may be subjected, to any conditions which it appears to the Minister, or to the Minister and the Minister of Transport in the case of an authorisation under section two of this Act, to be expedient to attach thereto, and he or they may at any time withdraw such an authorisation in whole or in part or vary conditions attached thereto, and they may at any time vary or revoke an order made under section two of this Act: Ancillary provisions as to authorisations.

Provided that he or they shall—

- (a) before attaching a condition to an authorisation after it has been given, consult the river board; and
- (b) before varying conditions attached to an authorisation, or varying or revoking an order under section two of this Act, consult the river board, and, so far as appears to him or them to be practicable, persons appearing to him or them to be liable to be adversely affected by the variation or revocation.

(2) A works authorisation given to a river board or other authority shall extend to their agents and contractors and persons in their employ or in the employ of their contractors.

(3) References in this Act or in a works authorisation to doing work of any kind shall be construed as including references to all things requisite for or incidental to doing work of that kind, and in particular to any of the following so far as so requisite or incidental, that is to say, entering on the land to which the authorisation extends, and passing thereover with or without vehicles or animals, and the making of erections or excavations, the placing of things, and the removal, demolition, pulling down, destruction or rendering useless of things, on, over or below the surface of the land:

Provided that—

- (a) it shall by virtue of this subsection be a condition of a right of entry conferred by a works authorisation that the person seeking to exercise it shall, if so required, produce some duly authenticated document showing the capacity by virtue of which the authorisation extends to him;

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- (b) admission to a building or part of a building which is occupied shall not be demanded by virtue of such a right unless in any case at least twenty-four hours' notice of the intended entry, or, if the entry is intended for the purpose of doing work, at least seven days' notice thereof, has been served on the occupier in some such manner as by virtue of section nineteen of the River Boards Act, 1948, constitutes due service of a notice required by that Act to be served on a person as having an interest in land; and
- (c) no work involving the vacation of a building or part of a building occupied as a residence shall be done pursuant to a works authorisation at any time unless at least one month before that time a notice to the effect that the vacation thereof by that time would be required for the purposes of work pursuant to the authorisation was served in manner aforesaid on the person who was the occupier thereof at the time of service of the notice, or, if it was then unoccupied, was affixed to some conspicuous object thereon.

(4) Where work has been done on land pursuant to a works authorisation, the river board or other authority by whom it was done may, and in so far as so directed by the Minister shall, at any time thereafter during the works period or within twelve months after the expiration thereof, do any work on the land needed for restoring the land and making good any damage thereto, and the last preceding subsection shall have effect as regards things requisite for or incidental to doing that work.

(5) Permission shall not be required under Part III of the Town and Country Planning Act, 1947, in respect of any development involved by bank construction, or by earth getting combined with bank construction or access road works so combined, to be done pursuant to a works authorisation, or by work to be so done for the diversion of a highway.

(6) Section seven of the Telegraph Act, 1878 (which makes provision as to work done in the execution of certain undertakings which involves alteration in telegraphic lines) shall apply to work done pursuant to a works authorisation as it applies to work done in the execution of such an undertaking as is mentioned in the said section seven.

Right to
maintain and
use works, etc.

5.—(1) A river board or other authority who do work pursuant to a works authorisation shall be entitled to have left in place, and to maintain, things constructed, improved or repaired in the course of the work—

- (a) in the case of bank construction, and of earth getting combined with bank construction or access road works so combined, without limit of time; or

(b) in the case of other work, during the works period; and for the purposes of maintenance authorised by this subsection the like rights of entry and passage as attach to a works authorisation shall be exercisable during the works period on and over the land on which the things in question are.

(2) Where a river board are given a works authorisation to do earth getting, any substance worked pursuant thereto shall on severance become the property of the board.

(3) Where a river board are given a works authorisation to do access road works, the persons to whom the authorisation extends may, during the works period, pass over roads constructed or improved pursuant thereto, with or without vehicles or animals, for the purposes for which the construction or improvement was authorised.

(4) A river board who are given a works authorisation to do temporary housing works may take possession of the land to which the authorisation relates, and retain possession thereof for any period during the works period, and, whilst they are in possession thereof under this subsection,—

(a) the accommodation may be used for occupation by persons for whom its construction was authorised and the board may make contracts therefor, and

(b) any right relating to the land the exercise of which would interfere with the use of the accommodation as aforesaid shall not be exercisable in so far as it would interfere with such use.

(5) Where an order has been made under section two of this Act in relation to any highway, the Minister of Transport may, at any time during the works period, or within six months after the expiration thereof, by order provide for the permanent stopping up or diversion of the highway or any part thereof if he is satisfied that it is necessary in the public interest so to do, and the provisions of the Schedule to this Act shall have effect in relation to an order under this subsection providing for such permanent stopping up or diversion.

6.—(1) For avoidance of doubt it is hereby declared that, Provisions as to purchase of land affected by works and of rights over land.
for the purposes of subsections (1) and (2) of section thirteen of the River Boards Act, 1948 (which relate to the acquisition by a river board by agreement or compulsorily of land which they require for any purpose connected with the exercise of their functions), land as to which a works authorisation is given to a river board, or which they require for doing work of any of the kinds specified in section one of this Act, is to be treated as land which they require as mentioned in that section, and that the powers thereby conferred to acquire an easement or other right over land extend to securing the creation of an easement or other such right in their favour.

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(2) Where a works authorisation to do bank construction or earth getting has been given and any work has been done pursuant thereto, an owner of any of the land to which the authorisation extends may, at any time during the works period or within twelve months from the expiration thereof, serve on the river board a notice requiring the board to purchase his interest in the land, and, where such a notice is duly served,—

- (a) the board shall be deemed to be authorised to purchase the interest of the owner compulsorily under the said section thirteen, and to have served notice to treat on the date on which the owner's notice was served; and
- (b) the power conferred by subsection (2) of section five of the Acquisition of Land (Assessment of Compensation) Act, 1919, to withdraw a notice to treat shall not be exercisable in the case of the notice to treat so deemed to have been served.

(3) Where under the powers conferred by the said section thirteen an easement or other right over land is created, any person having an interest in the land shall, if the value of his interest is diminished by the creation thereof, be entitled to receive from the river board compensation in respect of the diminution, and—

- (a) for the purpose of making them applicable in the case of the creation of an easement or right under the said section thirteen, the Acquisition of Land (Authorisation Procedure) Act, 1946, and other enactments which have effect as to the authorisation and rendering effectual of an acquisition of land itself by a river board shall have effect with such adaptations as may be prescribed by regulations made by the Minister by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament, and
- (b) provision may be made by such regulations for rendering a right created under the said section thirteen which is not a legal easement enforceable against persons acquiring title to the land subsequently to the creation thereof, and for the registration thereof under the Land Charges Act, 1925.

Provisions as to access to works and protection thereof

Right to use
private ways.

7.—(1) Any person being an agent or contractor of a river board, or a person in the employ of the board or a contractor of theirs, may during the works period—

- (a) pass, with or without vehicles or animals, over any road, path or other formed way for the purpose of going to or from the site of work of a kind specified in

section one of this Act which the board are doing or propose to do, or of meeting transport requirements such as are mentioned in paragraph (c) of subsection (1) of section one of this Act, notwithstanding that the way is not a highway or other way over which that person would apart from this section be entitled to pass, and

- (b) for that purpose enter on the land over which the way runs, on producing, if so required, some duly authenticated document showing the capacity by virtue of which the power conferred by this section extends to him.

(2) Where damage has been done to a way by the exercise of the power conferred by this section, the river board may, and in so far as so directed by the Minister shall, at any time thereafter during the works period or within twelve months from the expiration thereof, do any work on the land over which the way runs needed for making good the damage, and the power of entry conferred by paragraph (b) of the preceding subsection shall be exercisable for that purpose.

8.—(1) A river board may during the works period take the like steps for excluding persons from land to which this section applies, including the erection of fences, gates and other barriers and the taking of legal proceedings, as the occupier thereof could lawfully take:

Power to
exclude the
public from
sites of work,
etc.

Provided that a river board shall not by virtue of this section be entitled to exclude from any land the occupier thereof himself or persons authorised by him to enter or be thereon for any purpose, except that they shall be entitled, after consultation with the occupier, if ascertainable by them after reasonable inquiry, and with the local authority (that is to say, the council of the country district or county borough in which the land is), to exercise the power conferred by this section for preventing the use of the land by persons in substantial numbers as, or for access to, a pleasure ground, bathing place or other similar resort.

(2) This section applies to—

- (a) the site of any work of a kind specified in section one of this Act which is being done by the board;
- (b) any drainage works constructed, improved or repaired in the course of bank construction done by them;
- (c) any road constructed or improved in the course of access road works done by them (not including any highway).

9.—(1) The Minister may by regulations make such provision as appears to him to be expedient for preventing damage to, or interference with, things constructed, improved or repaired in the course of work done pursuant to a works authorisation, or to or with any drainage works or any banks vested in or under the control of a river board.

Regulations
for protection
of works.

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—cont.

PART I
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(2) Any person who contravenes or fails to comply with a provision of regulations under this section shall be guilty of an offence against this section and shall be liable on summary conviction to a fine not exceeding fifty pounds.

(3) Regulations under this section shall be made by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) This section shall continue in force until the end of the works period and shall then expire, but subsection (2) of section thirty-eight of the Interpretation Act, 1889, shall apply upon the expiration of this section as if this section had then been repealed and any regulation previously in force thereunder had been an enactment then repealed.

Compensation and Government contributions

Compensation. 10.—(1) The Minister shall prepare, with the approval of the Treasury, and lay before each House of Parliament, a draft of an order making such provision as appears to him, with such approval as aforesaid, to be requisite as regards—

(a) compensation to be paid by river boards for damage, or diminution in the value of land, occurring in consequence of the exercise of powers conferred by or under this Part of this Act, or for the use of land, or the working of clay or other substances, in the exercise of such powers; and

(b) adjustments, in respect of things done in the exercise of such powers, of compensation in respect of compulsory acquisitions of land affected thereby.

(2) If a draft of an order laid under the preceding subsection is approved by resolution of each House, the Minister shall make an order in the terms of the draft.

(3) An order made under this section may be varied by a subsequent order made by the Minister of which a draft has been prepared, laid and approved as aforesaid.

(4) An order under this section may either specify or make provision for determining the date on which it is to come into operation, and may make provision for compensation in respect of matters occurring before the date of its coming into operation.

(5) An order under this section shall be a statutory instrument, and the provisions of the Statutory Instruments Act, 1946, shall apply thereto accordingly.

(6) Without prejudice to the generality of this section, an order thereunder may make provision for securing that, where an owner of a building has, at any time on or after the twenty-sixth day of March, nineteen hundred and fifty-three, been

notified by a person acting on behalf of a river board of its being likely that the building would have to be demolished or damaged in connection with the doing of such work as is in this Act referred to as bank construction, or earth getting or access road works combined with bank construction, then, in assessing any amount of compensation which is, or but for such provision would be, payable to the owner or a person claiming through or under him by reference to the demolition of the building, or damage done thereto, in connection with the doing of any such work, there shall not be taken into account any enhancement of the value of his interest which is attributable to any repair, improvement or alteration of the building, or other work done thereon, after the date on which the notice was given.

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—cont.

(7) Until a draft of such an order as is mentioned in subsection (1) of this section has been presented to each House of Parliament no authorisation shall be given under section one of this Act and no order shall be made under section two thereof.

11. The Minister may, out of moneys provided by Parliament, make grants, subject to such conditions as he may with the approval of the Treasury determine, to river boards in respect of expenditure incurred by them in, or in connection with or in consequence of, the exercise of powers conferred by or under this Part of this Act. Government contributions.

Saving for powers under the principal Acts

12. Powers conferred on a river board by or under this Act shall be taken to be in addition to, and not in substitution for, powers vested in them by virtue of the Land Drainage Act, 1930, or the River Boards Act, 1948, or otherwise, and nothing in this Act shall be construed as prejudicing or limiting any powers so vested in them. Saving for powers under the principal Acts.

PART II

REHABILITATION OF AGRICULTURAL LAND

13.—(1) For the purpose of promoting the rehabilitation of arable or pasture land in England that has been damaged by salt water in the period beginning on the thirty-first day of January, nineteen hundred and fifty-three, the Minister may, in accordance with a scheme made by him with the approval of the Treasury, make out of moneys provided by Parliament payments in respect of the dealing with such land, in any of the relevant years (as hereinafter defined), in such of the modes hereinafter mentioned as may be specified in the scheme and determined in accordance therewith to be best calculated in that year to secure the rehabilitation of the land. Acreage payments in respect of rehabilitation of arable or pasture land damaged by salt water.

PART II
—cont.**(2) The said modes of dealing with land are—**

- (a) the use thereof for the growing of crops of such descriptions as may be specified in the scheme;
- (b) the use thereof for the laying down thereon of pasture;
- (c) in the case of pasture land, the retention thereof as such and the management thereof in such manner as may be determined in accordance with the scheme; and
- (d) the retention thereof uncropped and the management thereof as aforesaid;

and for the purposes of this section the expression “the relevant years” means the year nineteen hundred and fifty-three and the four next succeeding years and the expression “pasture” includes meadow.

(3) Payments in accordance with a scheme under this section shall be made by reference to the area of land dealt with in accordance with the scheme in any of the said modes and shall be at such rate as may be specified in the scheme, and any such scheme may specify different rates in relation to the dealing with land in different modes or the dealing in the same mode with land of different classes and, in relation to the use of land for growing crops, different rates in relation to the use of land for growing crops of different descriptions and in relation to the use of land in different areas for growing crops of the same description.

(4) A payment under this section in respect of the dealing with any land in any of the said modes in any of the relevant years shall be made to the person who, at the beginning of the fourth day of June in that year, is the occupier of the land:

Provided that where, before the payment is made, the said person has died or any other event (other than the execution of an assignment) has occurred whereby debts accruing due to the said person at the beginning of the said day would be claimable by some other person, the payment may be made to that other person.

(5) A scheme under this section may make provision—

- (a) with respect to the time within which and the manner in which applications for payments under this section are to be made;
- (b) for the reduction or withholding of payments in such circumstances as may be specified in the scheme, and for the recovery, in such circumstances as may be so specified, of payments made;
- (c) for disregarding for the purposes of the scheme a parcel of land whose area is less than half an acre, and for disregarding, in calculating for those purposes the area of any land, any fraction of an acre less than one-half, subject, however, in either case to any exceptions for which provision may be made by the scheme;

- (d) for the withholding of payments where the aggregate amount of the payments under this section in respect of the land worked as a unit by any person would be less than one pound.

(6) A scheme under this section may be varied or revoked by a subsequent scheme made by the Minister with the approval of the Treasury.

(7) The power to make, vary or revoke a scheme under this section shall be exercisable by statutory instrument.

(8) No statutory instrument making, varying or revoking a scheme under this section shall be made unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

14.—(1) The Minister may, out of moneys provided by Parliament, make to—

- (a) an association of allotment holders whereof the members are, at the beginning of the thirty-first day of January in any of the relevant years, occupiers of allotment gardens whose area in the aggregate is not less than half an acre, being allotment gardens that have been damaged by salt water in the period beginning on the thirty-first day of January, nineteen hundred and fifty-three;
- (b) a local authority or a society having as its object the cultivation of vacant land for the purpose of letting it for use as allotment gardens, being an authority or society by which there are let at the beginning of the thirty-first day of January in any of the relevant years allotment gardens whose area in the aggregate is not less than half an acre, being allotment gardens that have been damaged as aforesaid;

a payment by way of contribution towards the cost of taking the necessary steps in the relevant year in question for the purpose of rehabilitating those allotment gardens.

(2) A payment under this section to an association, local authority or society shall be made by reference to the area of land consisting of such allotment gardens as aforesaid which, at the beginning of the thirty-first day of January in the year with reference to which the payment is made, are occupied by members of the association or, as the case may be, let by the authority or society, and shall be at such rate as may be specified in a provision included for that purpose in a scheme under section thirteen of this Act, so, however, that in calculating the area of any land for the purpose of ascertaining the amount of a payment any fraction of an acre less than one-half shall be disregarded.

PART II
—cont.

(3) Provision may be made by any such scheme as aforesaid with respect to the time within which applications for payments under this section are to be made.

(4) In this section—

- (a) the expression “allotment garden” has the same meaning as it has for the purposes of the Allotments Act, 1922;
- (b) the expression “local authority” means the council of a borough, urban district or parish and the parish meeting of a rural parish not having a parish council; and
- (c) the expression “the relevant years” has the same meaning as it has for the purposes of section thirteen of this Act.

Regard to be had to rehabilitation of damaged land for purposes of Part II of Agriculture Act, 1947.

15. Where an agricultural unit within the meaning of the Agriculture Act, 1947, consists of or comprises land damaged by salt water in the period beginning on the thirty-first day of January, nineteen hundred and fifty-three, then, in determining for the purposes of Part II of that Act whether the manner in which the unit is being farmed is such as is mentioned in subsection (1) of section eleven of that Act (which defines the circumstances in which the occupier of an agricultural unit is deemed to fulfil his responsibilities to farm the unit in accordance with the rules of good husbandry), regard shall be had (but without prejudice to the generality of that subsection) to the extent to which the necessary steps are being taken for the purpose of rehabilitating the land so damaged.

Protection to occupiers of damaged land in respect of approved dealings therewith for rehabilitation thereof.

16. Paragraphs 1 and 4 of the Second Schedule to the Agriculture Act, 1947 (which confer on an occupier of land protection in respect of things done in compliance with directions of the Minister under that Act), shall, in the case of land damaged by salt water in the period beginning with the thirty-first day of January, nineteen hundred and fifty-three, have effect in relation to the dealing therewith at any time in a mode determined in accordance with a scheme under section thirteen of this Act to be best calculated at that time to secure the rehabilitation thereof as they have effect in relation to the carrying out on land of acts in compliance with a direction under section fourteen of the said Act of 1947.

PART III**GENERAL**

Fine for obstruction.

17. Any person who wilfully obstructs any person exercising a right conferred by a works authorisation or by this Act to enter on, pass over or take possession of any land, or to do any work, shall be guilty of an offence against this section, and shall be liable on summary conviction to a fine not exceeding five pounds in the case of a first such offence or twenty pounds in the case of a second or any subsequent such offence.

PART III
—cont.

18.—(1) In this Act, except where the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say—

Interpretation.

“constructed”, in references to things constructed in the course of work done, includes a reference to things erected or placed in the course of the work with a view to their remaining in place as part of the thing constructed;

“ecclesiastical property” means land belonging to any ecclesiastical benefice, or being or forming part of a church subject to the jurisdiction of the bishop of any diocese or the site of such a church, or being or forming part of a burial ground subject to such jurisdiction;

“highway” includes a bridge over which a highway passes;

“land” includes land covered by water;

“maintaining” includes, in relation to a gate, sluice or other construction which requires to be operated, the operation thereof, and “maintain” shall be construed accordingly;

“the Minister” means the Minister of Agriculture and Fisheries;

“owner” in relation to any land, means a person, other than a mortgagee not in possession, who is for the time being entitled to dispose of the fee simple of the land, whether in possession or in reversion, and includes also a person holding or entitled to the rents and profits of the land under a lease or agreement the unexpired term whereof exceeds three years;

“river board” means a board established under section one of the River Boards Act, 1948;

“works authorisation” has the meaning assigned to it by subsection (1) of section four of this Act;

“works period” has the meaning assigned to it by subsection (2) of section one of this Act.

(2) Earth getting or access road works shall be treated as falling within a provision of this Act relating to such work combined with bank construction in so far, and in so far only, as the work is proposed to be done or was done (whichever is relevant for the purposes of the provision in question)—

(a) in the case of earth getting, on land on, or contiguous or adjacent to, a site of bank construction;

(b) in the case of access road works—

(i) on such land, and

(ii) on a line following that of a bank, wall, embankment or dyke.

PART III
—cont.

(3) Expressions used in Part I of this Act and also in the Land Drainage Act, 1930, have in this Act the same meanings respectively as in that Act.

(4) References in this Act to any enactment shall be construed as references to that enactment as amended by or under any other enactment.

**Financial
provisions.**

19. There shall be defrayed out of moneys provided by Parliament—

- (a) any increase attributable to the provisions of this Act in the sums payable out of moneys provided by Parliament under Part I of the Local Government Act, 1948;
- (b) any increase attributable to the provisions of this Act in the sums payable out of the Road Fund;

and all expenses incurred under this Act by the Minister of Transport as highway authority shall be defrayed out of the Road Fund.

**Application to
the Crown.**

20. This Act, except section seven thereof, binds the Crown.

Short title.

21. This Act may be cited as the Coastal Flooding (Emergency Provisions) Act, 1953.

Section 5.

SCHEDULE

PROVISIONS AS TO PERMANENT STOPPING UP OR DIVERSION OF A HIGHWAY UNDER SUBSECTION (5) OF SECTION FIVE OF THIS ACT

1. Any order made under subsection (5) of section five of this Act shall be made in accordance with the provisions of the Sixth Schedule to the Town and Country Planning Act, 1947.

2. Subsections (2), (3), (4), (5) and (9) of section forty-nine of the said Act of 1947 (which contain powers to provide or improve highways and to acquire land for that purpose) shall have effect as if any reference in those subsections to an order made under the said section forty-nine included a reference to an order made under subsection (5) of section five of this Act.

3. In relation to any highway which is stopped up or diverted by virtue of an order under subsection (5) of section five of this Act, section twenty-five of the Town and Country Planning Act, 1944, as amended by the said Act of 1947 (which relates to the extinguishment of rights belonging to statutory undertakers in respect of apparatus in land acquired by a purchasing authority under Part IV of the said Act of 1947) shall have effect—

- (a) as if for references to land which has been acquired as aforesaid and to the purchasing authority there were substituted respectively references to land over which the highway subsisted and to the person entitled to possession of that land; and

(b) as if references in subsection (4) of the said section twenty-five to a local authority or statutory undertakers included references to any person (other than a Minister or the Central Land Board) who is entitled to possession as aforesaid;

and sections twenty-six and twenty-seven of the said Act of 1944 shall have effect accordingly.

4. The Sixth Schedule to the said Act of 1947 shall have effect as if any reference therein to an order made under section forty-nine of that Act or under subsection (1) thereof included a reference to an order made under subsection (5) of section five of this Act.

5. Any other provisions of the said Act of 1947 shall, so far as they are applicable in relation to an order made under section forty-nine of that Act, apply in like manner to an order made under subsection (5) of section five of this Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Acquisition of Land (Assessment of Compensation) Act, 1919... ..	9 & 10 Geo. 5. c. 57.
Land Charges Act, 1925	15 & 16 Geo. 5. c. 22.
Land Drainage Act, 1930	20 & 21 Geo. 5. c. 44.
Town and Country Planning Act, 1944	7 & 8 Geo. 6. c. 47.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
Agriculture Act, 1947	10 & 11 Geo. 6. c. 48.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
River Boards Act, 1948	11 & 12 Geo. 6. c. 32.
Coast Protection Act, 1949	12, 13 & 14 Geo. 6. c. 74.
Public Utilities Street Works Act, 1950	14 Geo. 6. c. 39.

CHAPTER 19

Pharmacy Act, 1953

ARRANGEMENT OF SECTIONS

Section

1. Abolition of register of chemists and druggists.
2. Examinations for registration of pharmaceutical chemists.
3. Register of pharmaceutical chemists.
4. Byelaws as to examinations, etc
5. Registration of persons holding University degrees in pharmacy.
6. Extension of objects of benevolent fund.